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**TAB 5**



## Board of Education Report

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**File #:** Rep-380-24/25, **Version:** 1

**Agenda Date:** 6/3/2025

**In Control:** Facilities

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### **Define and Approve the Birmingham Community Charter High School Aquatic Facility Replacement Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein**

Facilities Services Division

#### **Brief Description:**

(Define and Approve Birmingham Community Charter High School Aquatic Facility Replacement Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein) Recommends definition and approval of a project to replace the outdoor swimming pool complex at Birmingham Community Charter High School (Board District 3), and the amendment of the Facilities Services Division Strategic Execution Plan to incorporate therein, for a budget of \$41,141,552.

#### **Action Proposed:**

Define and approve the Birmingham Community Charter High School Aquatic Facility Replacement Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The budget of the proposed Project is \$41,141,552.

Authorize the Chief Procurement Officer, Chief Facilities Executive, or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Project including budget modifications and the purchase of equipment and materials.

#### **Background:**

The School Upgrade Program (SUP) - the current phase of Los Angeles Unified's Bond Program - supports the development of projects that upgrade, modernize, and replace aging and deteriorating school facilities, update technology, and address facilities inequities to help improve student health, safety, and educational quality. The SUP includes a spending target entitled, "Charter School Facilities Upgrades and Expansions." Projects developed under this category of need are included in the Facilities SEP.

Charter school facilities upgrade projects developed under this category of need are subject to assessment of the conditions and needs of the school building/site systems and components of District facilities occupied by charter schools, input from the charter school community, and development of an implementation plan by District staff.

The swimming pool complex at Birmingham Community Charter High School is in need of replacement due to continuous leakage from cracks found throughout the swimming pool and the pool deck, causing reduced water levels in the swimming pool and saturated soil behind the perimeter walls of the swimming pool complex.

The scope of the proposed Project includes, but is not limited to, the following:

- Construction of new outdoor swimming pool and associated support buildings as well as new shade structures, scoreboard, accessible bleachers, and sports lighting system with audio/visual

system.

- Demolition of existing outdoor swimming pool complex, including support buildings and structures.
- Site improvements at former pool area, including new natural turf, landscaping, and irrigation.
- Compliance with requirements from the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), or other obligations to ensure adherence with local, state, and federal requirements.

Construction is anticipated to begin in Q4-2027 and be completed in Q4-2029. The proposed Project will enhance physical education and athletics at Birmingham Community Charter High School and Daniel Pearl Magnet School - whose students participate in the aquatics program - and support California Interscholastic Federation (CIF) competitions for multiple West Valley schools including Taft Charter HS, Kennedy HS, Van Nuys HS, Granada Hills Charter, and El Camino Real Charter HS at the area's only pool. The proposed Project contributes to student health, safety, athletic achievement, school pride, and a positive school culture.

#### Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on May 22, 2025, as referenced in Exhibit A. The presentation that was provided is included as Exhibit B. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

#### **Expected Outcomes:**

Staff anticipates that the Board of Education will adopt the proposed amendment to the Facilities SEP to define and approve the proposed Project. Approval will authorize staff to proceed with the implementation of the proposed Project.

The proposed Project, once completed, will support student athletic achievement and physical education programs. The proposed Project will also decrease demand for ongoing costly repairs and maintenance, ensure compliance with current codes and requirements of the CIF for competition pools, and improve student health and safety.

#### **Board Options and Consequences:**

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to undertake the proposed Project in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, RR, and US. If the proposed action is not approved, Bond Program funds will not be expended and ongoing repair and maintenance costs to operate the pool will continue until it is no longer deemed usable.

#### **Policy Implications:**

The proposal does not impact Los Angeles Unified policy. The proposal is consistent with Los Angeles Unified's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures. The

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proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan, Pillar 4 Operational Effectiveness, Modernizing Infrastructure by upgrading athletic facilities.

**Budget Impact:**

The total budget for the proposed Project is \$41,141,552, and will be funded with Bond Program funds earmarked specifically for charter school facilities upgrades and expansions.

The budget was prepared based on the current information known, and assumptions about the scope, site conditions, and market conditions. The budget will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of the proposed Project.

**Student Impact:**

Approval of the proposed Project enables the District to continue ongoing efforts to improve facilities that help ensure thousands of current and future students are provided a safe environment that promotes physical education programs and student athletic achievement.

**Equity Impact:**

Building components/systems in the worst condition, especially those that pose a safety hazard and/or negatively impact school operations and other building systems if not addressed, will be addressed first.

**Issues and Analysis:**

Staff will implement all opportunities to minimize construction impacts on school operations and existing athletic programs.

The Office of Environmental Health and Safety (OEHS) will evaluate the proposed Project in accordance with CEQA.

**Attachments:**

Exhibit A - BOC Resolution

Exhibit B - BOC Presentation

**Submitted:**

05/05/25

**File #:** Rep-380-24/25, **Version:** 1  
**In Control:** Facilities

**Agenda Date:** 6/3/2025

**RESPECTFULLY SUBMITTED,**

  
 ALBERTO M. CARVALHO  
 Superintendent

**APPROVED BY:**

  
 PEDRO SALCIDO  
 Deputy Superintendent,  
 Business Services and Operations

**REVIEWED BY:**

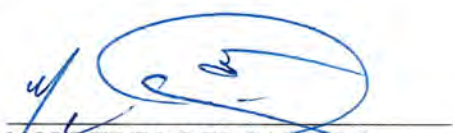
  
 DEVORA NAVERA REED  
 General Counsel

✓ Approved as to form.

**APPROVED BY:**

  
 KRISZTINA TOKES  
 Chief Facilities Executive  
 Facilities Services Division

**REVIEWED BY:**

  
 NOLBERTO DELGADO  
 Deputy Chief Financial Officer

✓ Approved as to budget impact statement.

**PRESENTED BY:**

  
 ISSAM DAHDUL  
 Director of Facilities  
 Planning and Development  
 Facilities Services Division

**SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE**

**D. Michael Hamner, FAIA, Chair**  
American Institute of Architects  
**Robert Campbell, Vice-Chair**  
L.A. Co. Auditor-Controller's Office  
**Dr. Samantha Rowles, Secretary**  
LAUSD Student Parent  
**Patrick MacFarlane, Executive Committee**  
Early Education Coalition  
**Scott Pansky, Executive Committee**  
L.A. Area Chamber of Commerce

**Joseph P. Buchman – Legal Counsel**  
Burke, Williams & Sorensen, LLP  
**Lori Raineri and Keith Weaver – Oversight Consultants**  
Government Financial Services Joint Powers Authority

**Neelura Bell**  
CA Charter School Association  
**Sandra Betts**  
CA Tax Reform Assn.  
**Chad Boggio**  
L.A. Co. Federation of Labor AFL-CIO  
**Aleigh Lewis**  
L.A. City Controller's Office  
**Jennifer McDowell**  
L.A. City Mayor's Office  
**Brian Mello**  
Assoc. General Contractors of CA  
**Santa Ramirez**  
Tenth District PTSA

**William O. Ross IV**  
31<sup>st</sup> District PTSA  
**Rachelle Anema (Alternate)**  
L.A. Co. Auditor-Controller's Office  
**Bevin Ashenmiller (Alternate)**  
Tenth District PTSA  
**Ashley Kaiser (Alternate)**  
Assoc. General Contractors of CA  
**Vacant**  
Assoc. of CA School Admin - Retired  
**Vacant**  
LAUSD Student Parent

**Timothy Popejoy**  
Bond Oversight Administrator  
**Perla Zitle**  
Bond Oversight Coordinator

**RESOLUTION 2025-24****BOARD REPORT 380-24/25**

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE BIRMINGHAM COMMUNITY CHARTER HIGH SCHOOL AQUATIC FACILITY REPLACEMENT PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, Los Angeles Unified School District Staff propose that the Board of Education (Board) define and approve the Birmingham Community Charter High School Aquatic Facility Replacement Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein, as described in Board Report No. 380-24/25 and also requests that the Board authorize the Chief Procurement Officer, Chief Facilities Executive or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Project including budget modifications and the purchase of equipment and materials; and

WHEREAS, The School Upgrade Program includes a spending target entitled "Charter School Facilities Upgrades and Expansions" and projects developed under this category of need are included in the Facilities SEP; and

WHEREAS, The swimming pool complex at the Birmingham Community Charter High School is in need of replacement due to continuous leakage from cracks found throughout the swimming pool and the pool deck, causing reduced water levels in the swimming pool and saturated soil behind the perimeter walls of the swimming pool complex; and

WHEREAS, The scope of the proposed Project includes, but is not limited to, the following:

- Construction of new outdoor swimming pool and associated support buildings as well as new shade structures, scoreboard, accessible bleachers, and sports lighting system with audio/visual system.
- Demolition of existing outdoor swimming pool complex, including support buildings and structures.
- Site improvements at former pool area, including new natural turf, landscaping, and irrigation.
- Compliance with requirements from the Americans with Disabilities Act, Division of the State Architect, California Environmental Quality Act, Department of Toxic Substances Control, or other obligations to ensure adherence with local, state, and federal requirements; and

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE BIRMINGHAM COMMUNITY CHARTER HIGH SCHOOL AQUATIC FACILITY REPLACEMENT PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, Construction is anticipated to begin in Q4-2027 and be completed in Q4-2029; and

WHEREAS, The proposed Project will enhance physical education and athletics at Birmingham Community Charter High School and Daniel Pearl Magnet School – whose students participate in the aquatics program – and support California Interscholastic Federation (CIF) competitions for multiple West Valley schools including Taft Charter HS, Kennedy HS, Van Nuys HS, Granada Hills Charter, and El Camino Real Charter HS at the area's only pool; and

WHEREAS, The proposed Project budget is \$41,141,552 and will be funded with Bond Program funds earmarked specifically for charter school facilities upgrades and expansions; and

WHEREAS, the District's Office of the General Counsel has reviewed the proposed Project and determined that it may proceed to the School Construction Citizens' Bond Oversight Committee (BOC) for its consideration for recommendation to the Board of Education; and

WHEREAS, District staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee (BOC) recommends that the Board define and approve the Birmingham Community Charter High School Aquatic Facility Replacement Project, and amend the Facilities SEP accordingly, as described in Board Report No. 380-24/25, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified Board and posted on the BOC's website.
3. Los Angeles Unified is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District.

ADOPTED on May 22, 2025, by the following vote:

AYES: 9

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 4

/Michael Hamner/

D. Michael Hamner  
Chair

/Robert Campbell/

Robert Campbell  
Vice-Chair



## **Birmingham Community Charter High School Aquatic Facility Replacement Project**

Bond Oversight Committee Meeting  
May 22, 2025

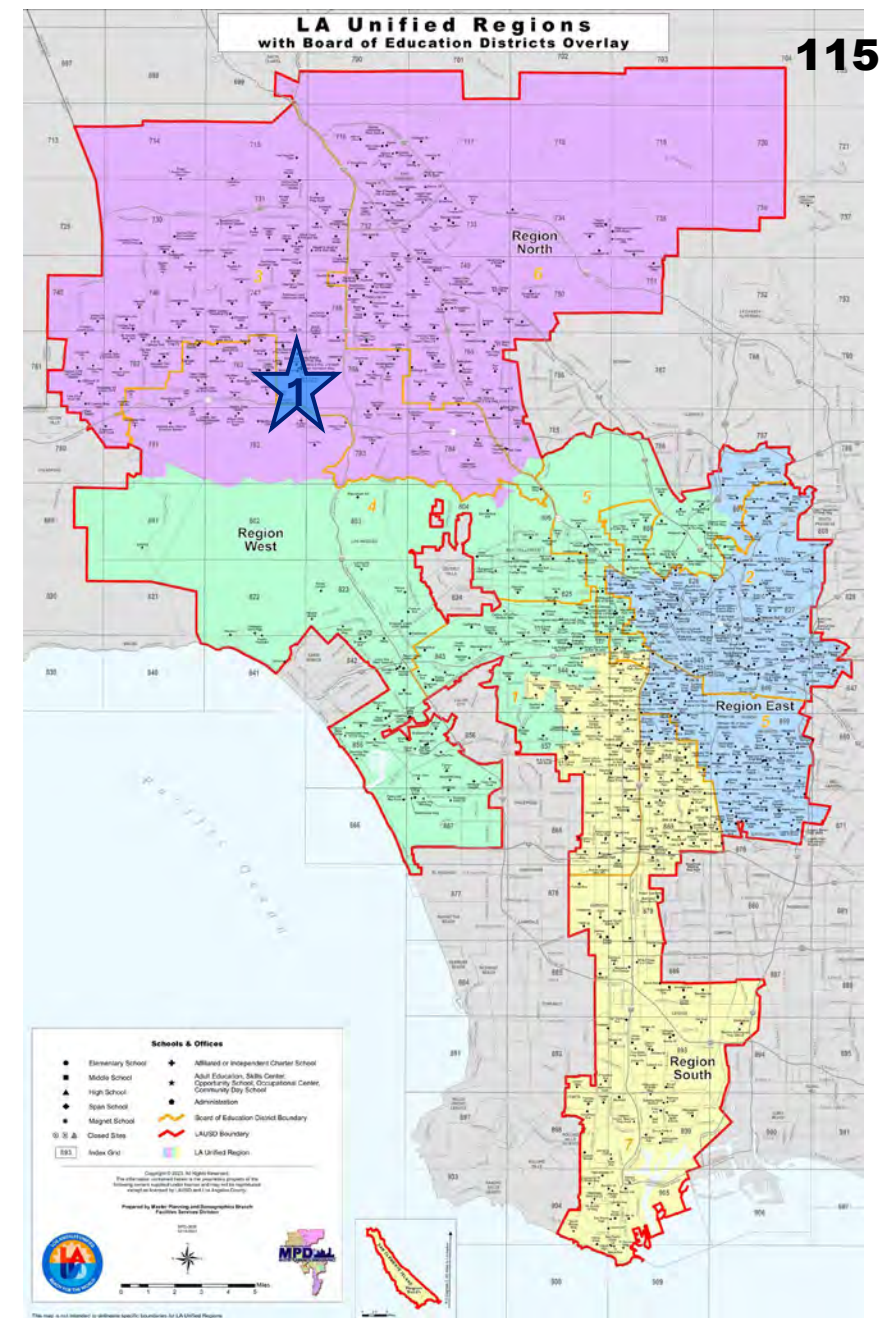
- The School Upgrade Program (SUP) framework and the Measure RR Implementation Plan guide the development of projects that upgrade, modernize, and replace aging and deteriorating school facilities, update technology, and address facilities inequities in order to help improve student health, safety, and educational quality.
- The SUP includes a spending target entitled "Charter School Facilities Upgrades and Expansions" and projects developed under this category of need are included in the Facilities SEP.
- The Prioritization criteria and methodology used for these projects consist of Critical Health and Safety Concerns, Urgency, Capital Preservation, and Stakeholders.
- Charter school facilities upgrade projects are subject to assessment of the conditions and needs of the school building/site systems and components of District facilities operated by charter schools, input from the charter school community, and development of an implementation plan by District staff.

# Background

- Existing pool is ~80 years old; originally used as military rehab facility in the 1940s
- Renovated in 1956; new deck and lighting added in 1975
- Pool is now in critical condition with persistent leaks and deck cracks
- Sloped areas lack accessibility, especially at northwest end
- Project will:
  - Improve PE & athletics at Birmingham Community Charter HS & Daniel Pearl Magnet School
  - Support aquatics programs across West Valley schools
  - Enable California Interscholastic Federation (CIF) competitions at area's only pool
  - Serve Taft Charter HS, Kennedy HS, Van Nuys HS, Granada Hills Charter HS & El Camino Real Charter HS

# Project Location Map

## 1. Birmingham Community Charter High School Charter Schools Division Board District 3



# Birmingham Community Charter High School Aquatic Facility Replacement

Board District 3

## Project Scope

- Construction of new outdoor swimming pool and associated support buildings as well as new shade structures, scoreboard, accessible bleachers, and sports lighting system with audio/visual system.
- Demolition of existing outdoor swimming pool complex including support buildings and structures.
- Site improvements at former pool area, including new natural turf, landscaping, and irrigation.
- Compliance with requirements from the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), or other obligations to ensure adherence with local, state, and federal requirements.

## Project Budget

|                        |       |
|------------------------|-------|
| • Site & Environmental | 1.4%  |
| • Plans                | 10.5% |
| • Construction         | 74.9% |
| • Management           | 6.6%  |
| • Other/Reserve        | 6.6%  |

\$41,141,552



## Anticipated Construction Schedule

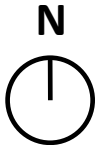
- Construction Start Q4-2027
- Construction Complete Q4-2029



|                           |       |
|---------------------------|-------|
| Enrollment<br>(2024-2025) | 3,150 |
|---------------------------|-------|

### LEGEND

-  Building on AB-300 Seismic List
-  Pool and Pool Buildings to be demolished



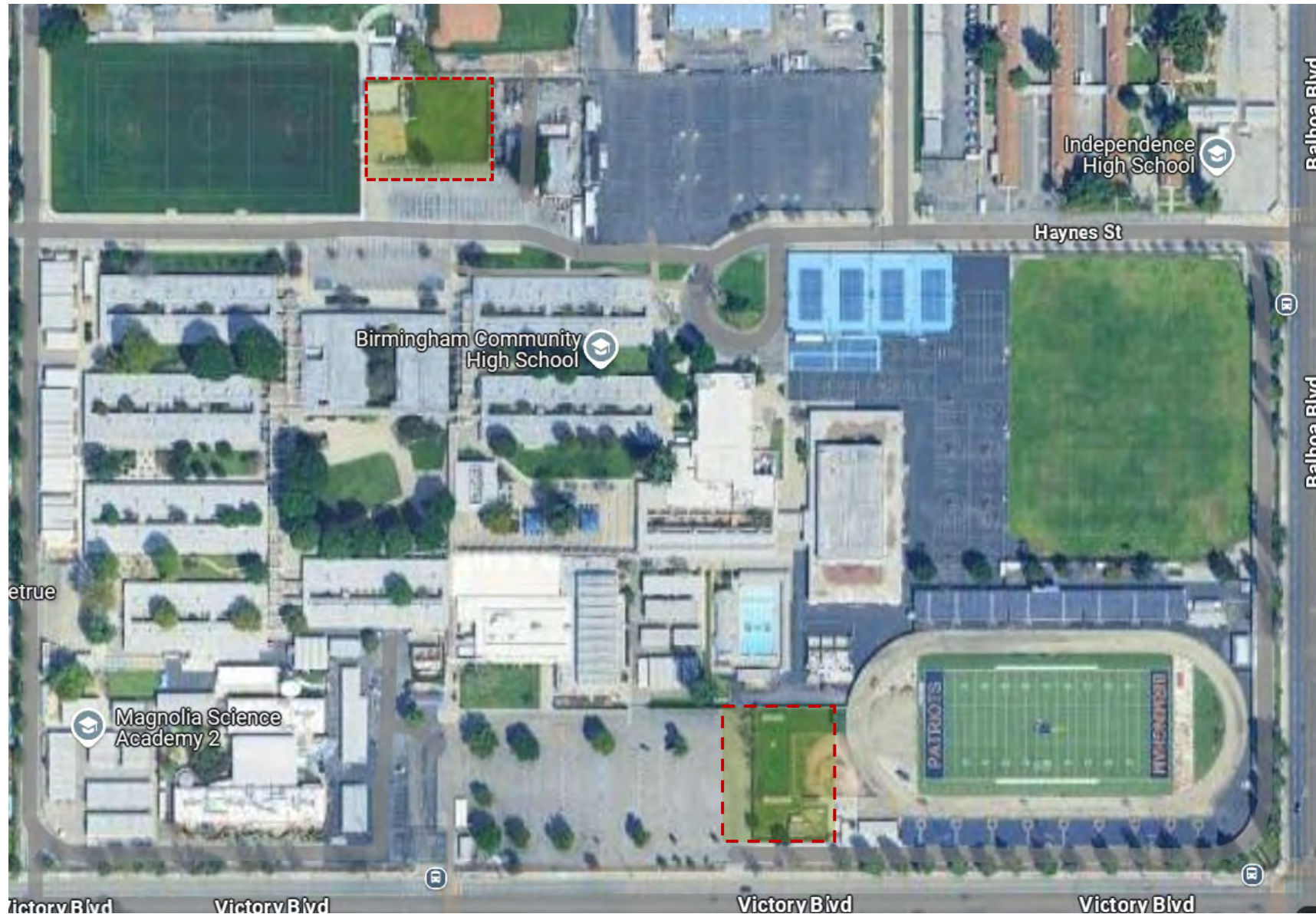
# Existing Condition



# Birmingham Community Charter High School

## New Swimming Pool – Potential Locations

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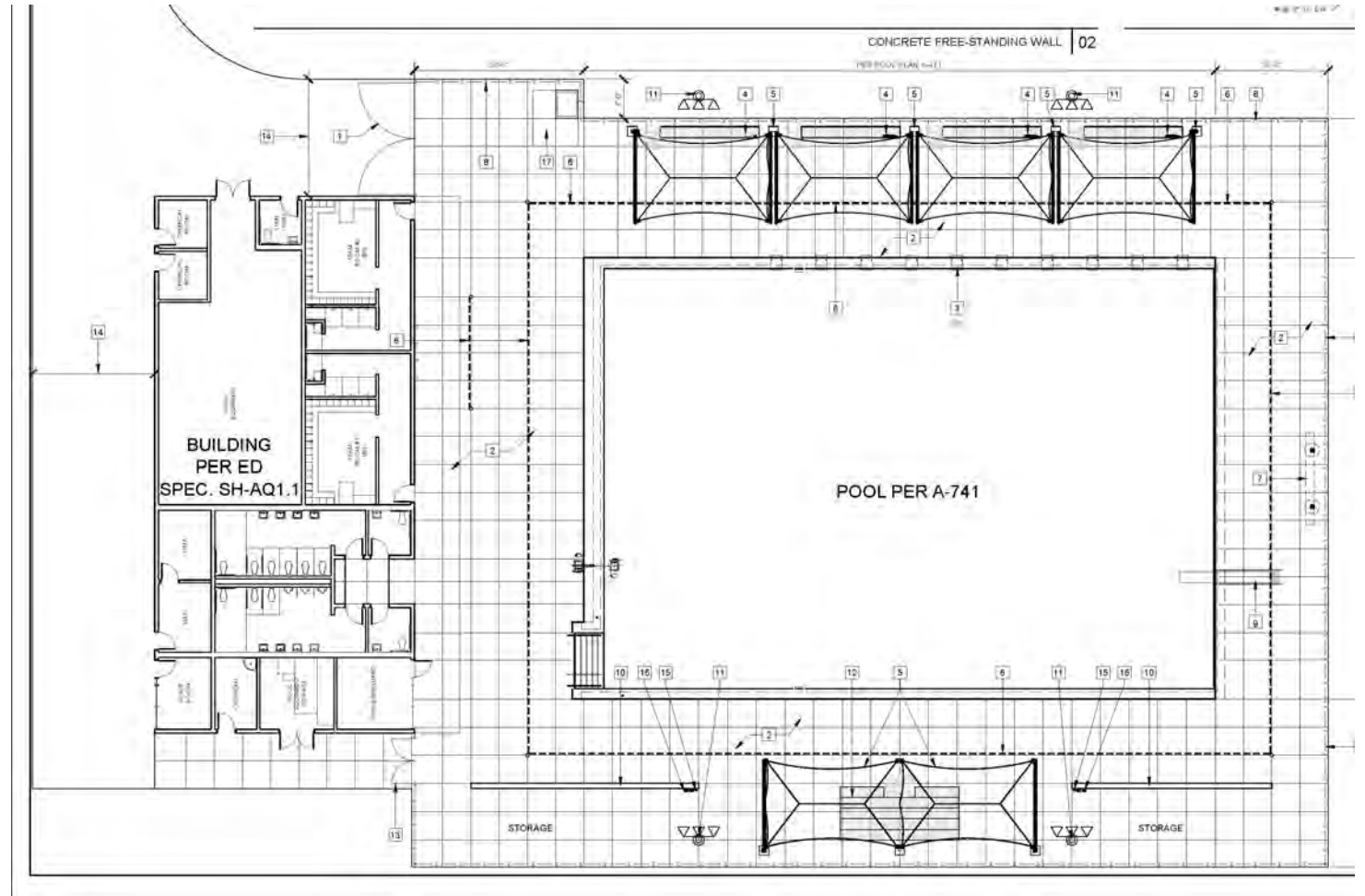


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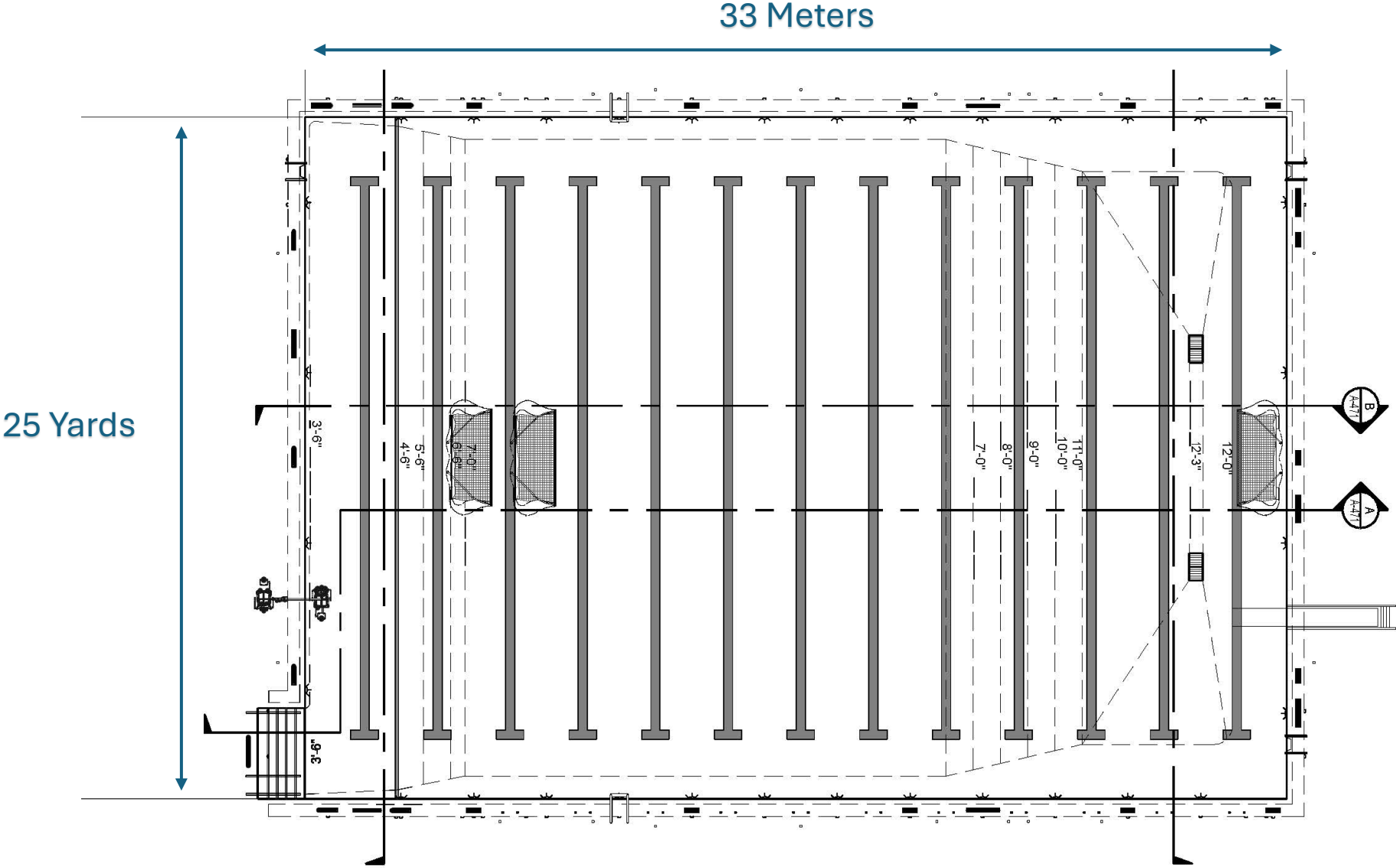
# Swimming Pool Standards

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- CIF regulation swimming pool (108' L x 75'-1" W)
  - 33 Meters Long for water polo games
  - 25 Yards Wide for swimming / races
- Racing platforms with integrated touchpad timing
- Meter Dive Stand
- Floating water polo goals
- Accessible lift
- Scoreboard
- LED sports lighting, speakers and AV system
- 5-tier bleachers w/ 96 spectator capacity
- Shade canopies
- Ticket booth
- Lifeguard office
- Team rooms with lockers & showers
- Restroom facilities
- Pool equipment/storage rooms



# Swimming Pool Standards



**Questions ?**